

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.
Respondents

SEA’S MOTION TO SUPPLEMENT ITS PETITION FOR ATTORNEY FEES

Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”), by its undersigned counsel, respectfully moves, pursuant to 46 C.F.R. §§ 502.216, 502.66, 502.69 and 502.71, to supplement the Declaration of Peter F. Black (Doc. 109) filed with its Petition for Attorney Fees (Doc. 108), to provide supplemental information as noted in its Petition at the time of submission.

I. DUTY TO CONFER

On February 25, 2026, SEA sought the position of Respondents Orient Overseas Container Line, Limited (“OOCL China”) and OOCL (Europe) LTD (“OOCL Europe”) (collectively, “Respondents” or “OOCL”) during a meet and confer conference. OOCL advised on February 26, 2026, that it opposes the Motion.

II. LEGAL STANDARD

The Commission's rules permit supplementation of the record, pursuant to 46 C.F.R. § 502.69, if submission of evidence is desired after a party's presentation in a proceeding, but before issuance by the presiding officer of an initial decision. 46 C.F.R. § 502.216.

To the extent that a Petition for Attorney Fees is considered a pleading, supplements are permitted or rejected at the discretion of the Commission or Presiding Officer. 46 C.F.R. § 502.66.

III. DISCUSSION

As the Declaration of Peter F. Black (Doc. 109) noted at pg 7, ¶ 20, the amount incurred by SEA in attorney fees in connection with the preparation of SEA's Petition for Attorney Fees was still being calculated at the time of submission, and a supplemental filing was anticipated and necessary to provide the additional calculation and invoices in support of its claim. Mills Black LLP has since issued its invoices for January 2026 and so is now able to supplement the record with respect to the fees SEA incurred in connection with the preparation and filing of the Petition for Attorney Fees. We attached hereto the Supplemental Declaration of Peter F. Black and supporting invoices.

SEA respectfully submits that the attached Supplemental Declaration does not broaden the issues presented in its Petition and prior Declaration (Docs. 108 & 109) and so OOCL does not require an opportunity to reply to the supplemental material. SEA does not oppose a Reply by OOCL if the Presiding Officer deems one necessary.

IV. CONCLUSION

For the foregoing reasons, SEA respectfully requests that the Presiding Officer grant the Motion to Supplement SEA's Petition for Attorney Fees.

Dated: March 2, 2026

Respectfully Submitted,

MILLS BLACK LLP

By: /s/ Peter F. Black

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

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Dated: March 2, 2026

By: /s/ Peter F. Black

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